

corded. Lastly, that those justices shall presently give judgement according to the said record.

A commission granted in 18 E. 3. grounded upon this statute, and referring to the same being enacted, as there it appeareth, at a parliament holden *die Mercurii proxim' post medium quadragesimæ anno 14 E. 3. regni Angliæ et Franciæ primo*, there being two parliaments in that year, which you may reade, being worthy of observation, for it is a good exposition of this act.

4. It is further provided by the said act of 14 E. 3. that in case it seemeth to them, that the difficulty is so great, that it cannot well be determined without assent of parliament, that the tenor or tenors shall be brought by the said prelate, earls, and barons unto the next parliament, and there shall finall accord be taken what judgement shall be given in this case.

* It is better that the demandant be delayed, then the tenant disinherited, or that the law be altered. Shard. We cannot nor will delay any man in respect of our oath.

* The justices ought to delay no man in the name of the king where the king hath no right. The demandant shall not be legally delayed twice for one cause.

* Delay in a *quare impedit*, though it be by essoign, is a disturbance. *a Semper fur est in mora. * In circuitu impii ambulant.*

* In divers cases the party grieved shall have an action for unjust delay.

** Tolle moram, semper nocuit differre paratis*

But seeing neither the common law, nor any of the acts of parliament do extend to ecclesiasticall courts, it is then demanded, what if an inferiour ordinary will refuse, or delay to admit and institute a clerk presented by the right patron, to a church within his dioces, or the like: or delay, or refuse to give sentence in a cause depending before him. It is answered, that the archbishop of the province may grant his ^b letters under his seale to all and singular clerks of his province, to admonish the ordinary, within nine dayes to performe that which by justice is desired, or otherwise to cite him to appeare before him or his officiall at a day in those letters prefixed, and to cite the party that hath suffered such delay, then and there likewise to appeare, and further to intimate to the said ordinary, that if he neither perform that which is enjoyned, nor appear, he himselfe without further delay will performe the justice required. Or in the former of the said cases, the party delayed may have his *quare imp.* but that is thought not to be so speedy a remedy.

Rot. pat. 18 E. 3.
2 part.

Rules concerning
delays.

^a 18 E. 3. 54. a.

¹³ H. 4. 4.

²⁴ E. 3. 64. a.

^b 4 E. 3. 2. a.

²² H. 6. 39. per

Newton.

¹⁰ E. 3. 57.

⁴⁰ E. 3. 22. &c.

^c 4 E. 3. 14.

⁶ E. 3. 4.

^d Bracton.

^e Psal. 12. 9.

^f 44 E. 3. 4.

¹⁸ E. 3. 12, 13.

²⁰ H. 6. 10.

²¹ E. 4. 22, 23.

^{F. N. B.} 96. f.

^{97.} b.

^g Ovidius.

^h This is called

duplex querela,

necessary to be

known for find-

ing of institu-

tions, &c.